

8	30-2026-01564481 Lee vs. Koo	The Court has read the Plaintiff's Motion for Summary Judgment (ROA 60), Defendant's Opposition (ROA 63) and Defendant's Declaration to Support Opposition (ROA 64). Based on the evidence presented, the Court grants the Plaintiff's Motion for Summary Judgment as the Court finds there are no triable issues. California Civil Code section 1947 states, "When there is no usage or contract to the contrary, rents are payable at the termination of the holding, when it does not exceed one year. If the holding is by the day, week, month, quarter, or year, rent is payable at the termination of the respective periods, as it successively becomes due." Defendant entered into a written contract with the Plaintiff for the rental of the premises for a set time frame from 3/15/2025 to 3/14/2026, which required an up-front payment of \$54,000 in rent and a \$ 4,500 security deposit, which the Defendant paid. The Parties then entered into a month-to-month agreement starting on 3/15/2026 for \$ 4,500 per month, payable on the 1st of each month. The rental period for which the Notice to Pay Rent or Quit was filed related to the month-to-month agreement, not to the original agreement for the property. Defendants misstate the applicability of Civil Code section 1947. Plaintiff has established a valid Notice to Pay Rent or Quit which was properly served on the Defendants. Defendants raise in their Opposition that notice of the Motion for Summary Judgment was not proper due to timing. The notice for a California unlawful detainer proceeding only requires 5 days' notice prior to a hearing; Defendant indicated in the opposition that the Motion for Summary Judgment was served via FedEx 9 days in advance of the hearing. Therefore, this is not a valid objection to notice. Lastly, the Defendants argue an issue regarding discovery. Discovery in an unlawful detainer proceeding is closed five days before the first set trial date. Here, the trial date is set for 7/13/2026, so five days in advance of that was July 8, 2026, and no discovery motions were filed prior to that date. Therefore, the Court enters judgment for the Plaintiff for possession of the property located at 122 Excursion, Irvine, CA 92618, County of Orange; forfeiture of the lease. A monetary judgment of \$6677 in past-due rent, holdover damages of \$10,350 (\$150.00 per day for 69 days), and \$1000 in attorneys' fees and court costs. Judgment applies to all unknown occupants or claimants under CCP§ 415.46. A writ of possession shall issue forthwith. Plaintiff is ordered to provide notice of the Court's ruling.
10	30-2026-01567697 Kelly vs. Solomonian	The Court has read and considered the Defendant's Motion for Reconsideration of Denial of Defendant's Motion to Strike Plaintiff's Unlawful Detainer Action (ROA 52), Supplemental Motion for Reconsideration of Denial of Defendant's Motion to Strike Plaintiff's Unlawful Detainer Complaint (ROA 49), and Plaintiff's Opposition (ROA 57). California Code of Civil Procedure section 1008 governs Motions for Reconsideration. When seeking a motion for reconsideration, the Legislature required parties to submit an application based upon new or different facts, circumstances, or law. Defendants fail to establish that the application for reconsideration is based on new or different facts, circumstances, or law. On June 23, 2026, the Defendant orally objected to the Court's tentative ruling on

		the same grounds and with the same information as in the Motion for Reconsideration. A motion to strike is generally used to address defects that appear on the face of a pleading or from matters of which a judge may take judicial notice and that are not grounds for demurrer. (<i>Pierson v. Sharp Memorial Hospital</i> (1989) 216 Cal.App.3d 340, 342.) As to the Defendant's assertion that this Court is acting as an advocate by referencing a code section in its ruling, the Court finds no merit to that charge by the Defendants. The California Court of Appeal held "'Courts are established to discover where lies the truth when issues are contested, and the final responsibility to see that justice is done rests with the judge.'" (<i>People v. Carlucci</i> (1979) 23 Cal.3d 249, 255 [152 Cal. Rptr. 439, 590 P.2d 15] (<i>Carlucci</i>) [discussing Evid. Code, § 775's codification of "traditional case law"]; accord, <i>Conservatorship of Pamela J.</i> (2005) 133 Cal.App.4th 807, 827 [35 Cal. Rptr. 3d 228] (<i>Pamela J.</i>)). As the Court of Appeal in <i>Pamela J.</i> explained, "'It apparently cannot be repeated too often for the guidance of a part of the legal profession that a judge is not a mere umpire presiding over a contest of wits between professional opponents, but a judicial officer entrusted with the grave task of determining where justice lies under the law and the facts between the parties who have sought the protection of our courts. Within reasonable limits, it is not only the right but the duty of a trial judge to clearly bring out the facts so that the important functions of his office may be fairly and justly performed.'" (<i>Pamela J.</i>, at p. 827.)." (<i>In re Emily D.</i> (2015) 234 Cal.App.4th 438, 446-447.) The Court DENIES the Defendant's Motion for Reconsideration as it fails to establish that the application for reconsideration is based on new or different facts, circumstances, or law. Plaintiff is ordered to provide notice of the Court's ruling.
12	30-2026-01570337 Rize LKMS, LLC vs. Richardson	The Court has read and considered the Defendant's Motion to Quash Service of Summons. The Court takes Judicial Notice of the Order to Serve Summons by Posting (ROA 10). The Court DENIES the Defendant's Motion to Quash Service of Summons. The Defendant is ordered to file a responsive pleading in 5 days. The Plaintiff is ordered to provide notice of the Court's ruling.
13	30-2026-01571657 Jefferson Centerpoint LLC vs. Mizner	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 12), the Complaint (ROA 2), and Plaintiff's Opposition (ROA 18). The Court OVERRULES the Demurrer. On the face of the Complaint, it is legally sufficient to state a cause of action. The Complaint does indicate what type of rental agreement was between the parties, contrary to the allegations in the demurrer.